

25VECV01933 25VECV01933

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-17

Motion: MOTION TO COMPEL DEPOSITION OF PERSON(S) MOST QUALIFIED AT DEFENDANT JAGUAR LAND ROVER NORTH AMERICA, LLC

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Case Number: 25VECV01933 Hearing Date: August 17, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARINE NUBARYAN,

an individual,

Plaintiff,

vs.

JAGUAR LAND ROVER NORTH AMERICA, LLC, a

Delaware Limited Liability Company; TERRY YORK MOTOR CARS, LTD., a California

Corporation; and DOES 1 through 30, inclusive,

Defendants.

CASE NO: 25VECV01933

[TENTATIVE]

ORDER RE:

MOTION

TO COMPEL DEPOSITION OF PERSON(S) MOST QUALIFIED AT DEFENDANT JAGUAR LAND

ROVER NORTH AMERICA, LLC

Dept. W

8:30 a.m.

August 17, 2026

[TENTATIVE] ORDER: The Court orders

Defendant JLRNA to produce their PMK for an initial deposition by September 18, 2026. Additionally, the Court schedules an OSC Re: Sanctions for September 18, 2026, based on Defendant's abuse of the discovery process, as well as their failure to comply with this Court's previous order.

Background

This

is a lemon law case. Plaintiff Marine Nubaryan alleges that on December 1, 2022, she, "purchased from Dealership for valuable consideration the Subject Vehicle manufactured by Manufacturer." 1 (Compl. ¶ 5.) Defendants are Jaguar Land Rover North America, LLC (JLRNA), the manufacturer of the Subject Vehicle, as well as Defendant Terry York Motor Cars, a car dealership. Plaintiff alleges that the Subject Vehicle experienced numerous defects that could not be cured after a reasonable number of repair attempts.

On

April 3, 2025, Plaintiff brought suit against Defendants, alleging multiple violations of the Song-Beverly Act, violations of the Magnuson-Moss warranty act, violations of the BPC, as well as a claim for fraud.

On

November 7, 2025, Plaintiff moved to compel Defendant JLRNA into compliance with the new lemon law discovery statute. Specifically, Plaintiff requested the deposition of Defendant's PMK, as well as statutory sanctions.

On March 9, 2026, this

Court granted Plaintiff's motion and ordered the deposition of the PMQ take place within 60 days – May 8, 2026. This court-ordered deposition did not take place.

Now, Plaintiff once again moves to compel this deposition.

Discussion

Plaintiff moves to once again compel the initial deposition of Defendant JLRNA's PMQ, as required under CCP § 871.26(c), and as previously ordered by this Court. (Mot. to Compel, p. 6:2-9.)

The Court ordered Defendant to produce a PMK for this initial deposition by May 8, 2026. (Minute Order, 3/9/26.) Following this order, Defendant provided May 7, 2026, as an available date for this deposition. (Ter-Saakyan Decl. ¶ 8.) However, on May 4, just three days before the scheduled deposition date, Defendant emailed Plaintiff to inform them that their PMK was no longer available. (Id. ¶ 12.) Plaintiff asserts that this deposition has yet to take place. (Mot. to Compel, p. 7:24.)

In Opposition, Defendant raises multiple tangential arguments, such as, the timing of mediation, and whether Plaintiff brought this motion under the appropriate statute. (Opp, pp. 2:21-3:2.) Additionally, Defendant argues that this motion is inappropriate, because Plaintiff failed to work informally with Defendant to find an alternative to the May 7, 2026, date. (Opp. p. 3:22-27.) Finally, Defendant asserts that, "the unexpected cancellation of the May 7 deposition date when the deponent was required to travel to New Jersey was unavoidable under the totality of the circumstances and demonstrates good faith." (Opp. p. 4:1-4.)

The Court finds none of these arguments convincing. First and second, this Court has already ordered the initial deposition of Defendant's PMK. (Minute Order, 3/9/26.) Thus, the relevant statute and timing of mediation are moot points. Third and fourth, the Court is unmoved by Defendant's complaints about Plaintiff's unwillingness to reschedule informally, or the unexpected circumstance that forced the PMK to reschedule. This Court gave Defendant sixty days to produce their PMK for an initial deposition, as required by statute. Defendant, by their own choice, scheduled the deposition for the second-to-last possible day. Thus, when the PMK became suddenly unavailable, there was no time left for Defendant to reschedule. This situation is entirely of Defendant's own making. Therefore, the Court finds this Opposition without merit.

The simple facts of this motion are that the Court ordered Defendant to produce their PMK for an initial

deposition, pursuant to CCP § 871.26, by May 8, 2026; Defendant failed to do so. For these reasons, the Court once again orders Defendant to produce a PMK for an initial deposition by September 17, 2026.

Additionally, the Court schedules an OSC Re: Sanctions for September 18, 2026, based on Defendant's abuse of the discovery process, as well as their failure to comply with this Court's previous order.

Conclusion

The Court orders Defendant to produce a PMK for an initial deposition by September 18, 2026. Additionally, the Court schedules an OSC Re: Sanctions for September 18, 2026, based on Defendant's abuse of the discovery process, as well as their failure to comply with this Court's previous order.

IT
IS SO ORDERED.

Defendant TO GIVE NOTICE.

August 17, 2026